



File No.: EXP202212707

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: Mr. A.A.A. (hereinafter the claimant) filed a complaint with the Spanish Agency for Data Protection on 06/10/2022. The complaint is directed against the CONSELLERÍA DEL MAR with NIF S1511001H (hereinafter the respondent). The reasons for the complaint are as follows: the respondent notified the affected party of the record of a complaint. Along with the record of his complaint (380/21/C), 17 additional records containing third-party data were attached. According to the claimant, a colleague informed him that he had received at his home the record containing the claimant's data and that of other members of the Cofradía de Cabo de Cruz. Along with the complaint, he submitted the notification made by the respondent.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), on 29/11/2022, this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements established in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on 30/11/2022 as stated in the acknowledgment of receipt in the file.

The respondent, in a letter dated 28/12/2022, stated, in summary, that the Secretaría Xeral Técnica of the Consellería do Mar is responsible for the processing of personal data arising from the initiation of sanctioning procedures in the field of fishing; that upon receiving the complaint, the DPD initiated investigations regarding the claimed facts; that the notification of the agreement to initiate the sanctioning procedures was carried out by postal mail, attaching to each of them, in accordance with the provisions of current legislation, a copy of the corresponding record; that at the time of photocopying and enveloping the documentation of the files for sending to the affected persons, an error occurred that resulted in the inclusion, in one case, of a list of records, which is actually part of an Official Communication sent by Guardapescas to the Territorial Headquarters of A Coruña of the Consellería and which should not have been included in the documentation sent along with the Agreement to initiate the sanctioning procedure, and in another case, the first page of the record of complaint corresponding to another interested party was sent to one of the interested parties; however, in no case and contrary to what the claimant stated, were 17 additional records corresponding to third parties attached to the record of his complaint, but rather a list of names and surnames associated with a record number, without containing any other personal data. Neither was the complete record corresponding to the claimant sent to any third party, but rather, due to an error in photocopying the file, one page of the record of the claimant was also photocopied on the front of one of the pages of the notification addressed to this third party.

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Provides the Registry of Treatment Activities and the Impact Assessment Report.

THIRD: On 06/01/2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the claimant was admitted for processing.

FOURTH: On 03/05/2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent, for the alleged infringement of Articles 5.1.f) and 32.1 of the GDPR, classified under Articles 83.5.a) and 83.4.a) of the aforementioned GDPR and sanctioned in accordance with the provisions of Article 77 of the LOPDGDD.

FIFTH: After being notified of the initiation agreement, the respondent submitted a written statement of

allegations on 28/12/2022, stating, in summary, the following: that within the functions of the brotherhoods in defense of the interests of the professionals they comprise, the brotherhoods are responsible for monitoring the areas of public maritime and maritime-terrestrial domain entrusted to them for their use; that the functions of inspection and monitoring of fishing and shellfish activities are carried out by the brotherhoods through the figure of maritime guards, duly authorized according to their specific regulations; that, likewise, the Xeral Technical Secretariat of the Conselleria do Mar holds the status of responsible for the processing of personal data arising from the initiation of sanctioning procedures in fishing matters, for which it collaborates with the brotherhoods; that upon receiving the complaint, the DPD initiated the corresponding investigation work on the facts presented, gathering information from the different technical units that could be involved, requesting a report from the Territorial Headquarters of A Coruña, where the events that led to the complaint occurred, and from whose analysis it is concluded that:

- The complaint records prepared against the interested parties led to the corresponding sanctioning procedures.
- The notification of the initiation agreement was carried out via postal mail, attaching to each of them a copy of the corresponding record.
- However, in view of the information conveyed, at the time of photocopying and enveloping the documentation in the files for sending to the affected individuals, an error occurred that resulted in the inclusion in that shipment of a list of records that should not have been included in the documentation sent along with the initiation agreement of the sanctioning procedure and, in another case, the first page of the complaint record corresponding to another interested party was sent to one of the affected individuals.

In no case were the other 17 records corresponding to third parties attached to the complaint record; rather, by mistake, a list of names associated with a record number was photocopied and included in the postal notification sent to the claimant, without containing any other personal data.

Once the incident was analyzed and properly recorded after the DPD of the Conselleria do Mar became effectively aware of it, it was resolved to adopt a series of measures to prevent incidents like the one that led to the complaint.

SIXTH: On 17/05/2023, a period for the practice of evidence was initiated, agreeing to the following:

- To consider as reproduced for evidentiary purposes the complaint filed by the claimant and its documentation, the documents obtained and generated that are part of the procedure.
- To consider as reproduced for evidentiary purposes the allegations to the initiation agreement of the referenced sanctioning procedure, submitted by the respondent and the documentation provided.

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SEVENTH: On 06/07/2023, a Proposal for Resolution was issued stating that the Director of the Spanish Agency for Data Protection should sanction the respondent for infringement of Article 6.1 and 32.1 of the GDPR, classified under Article 83.5.a) and Article 83.4.a) of the aforementioned GDPR.

The aforementioned Proposal was notified to the respondent on 11/07/2023. After the legally established period elapsed, the respondent did not submit a written statement of allegations.

EIGHTH: From the actions carried out in the present procedure, the following have been established:

PROVEN FACTS

FIRST. On 06/10/2022, a letter from the complainant was received by the Spanish Agency for Data Protection stating that the respondent notified him of a record of a complaint, and along with it (380/21/C), 17 additional records were attached containing data of third parties; it also indicates that a colleague informed him that he had received at his home the record containing the complainant's data and those of other members of the Cofradía de Cabo de Cruz, considering that the regulations on personal data protection have been violated.

SECOND. The notification of the official letter sent to the complainant by the Cofradía de Pescadores "Virgen del Carmen" is provided, subject: sending records of infringement in the area of shellfish

gathering, to which a list of records is attached containing the names and surnames of interested parties (17) and the corresponding record number.

THIRD. The respondent, in a letter dated 28/12/2022, stated that everything was due to "a regrettable human error at the time of photocopying the documents that should accompany the notifications of the initiation agreements of the different sanctioning procedures."

And this error caused that in the notification sent to the complainant "a list of names and surnames of 17 other people... associated with record numbers" was included and that also "the first page of the complaint record corresponding to the complainant, which includes the identifying data of the interested party and the vessel, was sent to one of the interested parties."

FOURTH. The respondent has provided the documents on the Register of Processing Activities and the Data Protection Impact Assessment Report.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

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II

The reported facts materialize in that the notification carried out is considered to have infringed the personal data protection regulations by containing, along with the record of the complaint related to the respondent, documents that contain data of third parties.

Article 58 of the GDPR, Powers, states:

"2. Each supervisory authority shall have all of the following corrective powers:

(...)

b) to impose an administrative fine on the controller or processor with a warning when the processing operations have infringed the provisions of this Regulation;

(...)."

III

Firstly, such processing could constitute an infringement of Article 5, Principles relating to processing, of the GDPR, which establishes that:

"1. Personal data shall be:

(...)

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction or damage, by applying appropriate technical or organizational measures ('integrity and confidentiality').

(...)"

IV

Article 83.5 a) of the GDPR considers that the infringement of "the basic principles for processing, including the conditions for consent in accordance with Articles 5, 6, 7, and 9" is subject to sanction.

In turn, the LOPDGDD in its Article 71, Infringements, states: "Acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

Also, the LOPDGDD, for the purposes of prescription, in its Article 72 indicates: "Infringements considered very serious:

1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall prescribe after three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

(...)"

V

1. The documentation in the file provides clear evidence that the respondent violated Article 5 of the GDPR, principles relating to processing, by allowing the

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access to personal data belonging to third parties by attaching to the notification of the complaint report a list of names and surnames of 17 interested parties along with the corresponding report number.

The duty of confidentiality must be understood as having the purpose of preventing unauthorized leaks of data not consented to by the data subjects.

The respondent has stated that the cause of the incident was "a regrettable human error at the moment of photocopying the documents that were to accompany the notifications of the initiation agreements of the different sanctioning procedures. Obviously, the intention of the staff of this Conselleria was in no case to reveal personal data to third parties not interested in each of the notified sanctioning procedures, nor to cause any harm to the affected parties, but solely to comply with the obligations arising from the corresponding administrative procedure."

This error caused the notification sent to the claimant to include "a list of names and surnames of 17 other people, ..., associated with report numbers... it also resulted in one of the interested parties receiving the first page of the complaint report corresponding to the claimant, which includes the identifying data of the interested party and the vessel."

Therefore, the conduct of the respondent is considered to violate the principle of confidentiality, in accordance with what is stated in Article 5.1.f) of the GDPR, classified under Article 83.5.a) of the aforementioned Regulation.

VI

Secondly, the respondent is attributed with the infringement of Article 32 of the GDPR "Security of processing," which establishes that:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying probability and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

a) the pseudonymization and encryption of personal data;

b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;

c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;

d) a process for regularly verifying, assessing, and evaluating the effectiveness of the technical and organizational measures to ensure the security of processing.

2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a result of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the

unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data is subject to a duty of confidentiality.”

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Personal data may only be processed by the data processor following the instructions of the data controller, unless required to do so by Union or Member State law.”

VII

The violation of Article 32 of the GDPR is classified in Article 83.4.a) of the aforementioned GDPR as follows:

“4. Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 2% of the total global annual turnover of the previous financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43.
(...)”

For its part, the LOPDGDD in its Article 71, Violations, states that: “Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute violations.”

And in its Article 73, for the purposes of prescription, qualifies as “Serious Violations”:

“Based on what is established in Article 83.4 of Regulation (EU) 2016/679, the following violations are considered serious and shall prescribe after two years: those that constitute a substantial breach of the articles mentioned therein and, in particular, the following:

(...)”

g) The breach, as a result of a lack of due diligence, of the technical and organizational measures that should have been implemented in accordance with the requirements of Article 32.1 of Regulation (EU) 2016/679.”

(...)”

VIII

1. The GDPR defines personal data security breaches as “all breaches of security that lead to the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or to unauthorized communication or access to such data.”

The documentation in the file provides clear evidence that the respondent has violated Article 32.1 of the GDPR, as a security incident occurred, breaching the established technical and organizational measures.

It should be noted that the GDPR in the cited provision does not establish a list of security measures applicable according to the data being processed, but rather states that the controller and the processor shall implement technical and organizational measures that are appropriate to the risk posed by the processing, taking into account the state of the art, the costs of implementation, the nature, scope, context, and purposes of the processing, and the risks of likelihood and severity for the rights and freedoms of the data subjects.

Furthermore, the security measures must be adequate and proportionate to the identified risk, indicating that the determination of the technical and organizational measures should be made considering: pseudonymization and encryption, the ability to

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to guarantee confidentiality, integrity, availability, and resilience, the ability to restore availability and access to data after an incident, verification process (not audit), assessment, and evaluation of the effectiveness of the measures.

In any case, when assessing the adequacy of the level of security, particular consideration will be given to the risks presented by data processing, as a consequence of the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data that could cause physical, material, or immaterial harm.

In this same sense, Recital 83 of the GDPR states that:

“(83) In order to maintain security and prevent processing from infringing the provisions of this Regulation, the controller or processor must assess the inherent risks of processing and implement measures to mitigate them, such as encryption. These measures must ensure an adequate level of security, including confidentiality, taking into account the state of the art and the cost of their implementation in relation to the risks and the nature of the personal data that must be protected.

When assessing the risk in relation to data security, the risks arising from the processing of personal data must be taken into account, such as the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data, particularly susceptible to causing physical, material, or immaterial harm.”

2. In the present case, as recorded in the file, the AEPD forwarded the complaint filed to the respondent for analysis and to inform this Agency of the actions taken to comply with the requirements set forth in data protection regulations.

The respondent, as already noted in the previous reasoning, has confirmed that due to a regrettable human error at the time of photocopying the documents that were to accompany the notifications of the initiation agreement of the different sanctioning procedures, the following occurred:

“- in one case, a list of minutes that should not have been included in the documentation sent along with the initiation agreement of the sanctioning procedure and
- in another case, the first page of the minutes of the complaint corresponding to another interested party was sent to one of the interested parties.”

It should be noted that the responsibility of the respondent is determined by the security incident highlighted by the complainant, as measures were not adopted to prevent errors such as the one that occurred, since they are responsible for making decisions aimed at effectively implementing and adapting the appropriate technical and organizational measures to ensure an adequate level of security in relation to the risk, ensuring the confidentiality of the data, restoring its availability, and preventing access to it in the event of a physical or technical incident.

In accordance with the above, it is estimated that the respondent would presumably be responsible for the infringement of the GDPR: the violation of Article 32, an infringement classified in Article 83.4.a).

IX

The LOPDGDD in its Article 77, Applicable regime for certain categories of controllers or processors, establishes the following:

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“1. The regime established in this article shall apply to the treatments for which the following are responsible or in charge:

- a) The constitutional bodies or those with constitutional relevance and the institutions of the autonomous communities analogous to them.
- b) The judicial bodies.
- c) The General Administration of the State, the Administrations of the autonomous communities, and

the entities that comprise the Local Administration.

d) The public bodies and entities of public law linked to or dependent on the Public Administrations.

e) The independent administrative authorities.

f) The Bank of Spain.

g) The public law corporations when the purposes of the treatment relate to the exercise of public law powers.

h) The foundations of the public sector.

i) The Public Universities.

j) The consortia.

k) The parliamentary groups of the General Courts and the autonomous Legislative Assemblies, as well as the political groups of the Local Corporations.

2. When the responsible parties or those in charge listed in section 1 commit any of the infractions referred to in articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution sanctioning them with a warning. The resolution shall also establish the measures that should be adopted to cease the conduct or correct the effects of the infraction that has been committed.

The resolution shall be notified to the responsible party or those in charge of the treatment, to the body to which they hierarchically depend, if applicable, and to the affected parties who qualify as interested parties, if applicable.

3. Without prejudice to what is established in the previous section, the data protection authority shall also propose the initiation of disciplinary actions when there are sufficient indications for it. In this case, the procedure and the sanctions to be applied shall be those established in the legislation on disciplinary or sanctioning regime that is applicable.

Furthermore, when the infractions are attributable to authorities and executives, and it is proven that there are technical reports or recommendations for the treatment that have not been duly addressed, the resolution imposing the sanction shall include a reprimand naming the responsible official and shall order the publication in the corresponding Official State or autonomous Gazette.

4. The resolutions regarding the measures and actions referred to in the previous sections shall be communicated to the data protection authority.

5. The actions carried out and the resolutions issued under this article shall be communicated to the Ombudsman or, where applicable, to the analogous institutions of the autonomous communities.

6. When the competent authority is the Spanish Agency for Data Protection, it shall publish on its website, with due separation, the resolutions related to the entities in section 1 of this article, with an express indication of the identity of the responsible party or those in charge of the treatment who have committed the infraction.

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When the competence corresponds to an autonomous data protection authority, the publicity of these resolutions shall be governed by its specific regulations.

In the case examined, the sanctioning procedure arises from the fact that the respondent, as stated in the proven facts, has violated the regulations regarding the protection of personal data, both the principle of confidentiality of the data and the technical and organizational measures implemented. Such conduct constitutes an infringement by the respondent of the provisions of articles 5.1.f) and 32.1 of the GDPR.

It should be noted that the GDPR, without prejudice to what is established in its article 83, contemplates in its article 77 the possibility of resorting to a warning sanction to correct personal data processing that does not comply with its provisions, when the controllers or processors listed in paragraph 1 commit any of the infringements referred to in articles 72 to 74 of this organic law.

Additionally, article 58 of the GDPR, in its paragraph 2 d), states that each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified time frame...”.

However, the respondent has stated that, once the incident was analyzed, it was decided to adopt a series of measures to prevent such situations from occurring in the future:

“• Address all units of this Conselleria, whether involved in the facts subject to the complaint or not, in order to expressly reiterate aspects such as the following:

- The obligation to review any documentation that is intended to be sent by postal mail or personally delivered to the affected parties in advance, in order to detect potential errors in its content with the necessary advance notice.
- To remind again in general the main rules and best practices to be considered for protecting documentation in paper format that contains personal data, in order to ensure its security and prevent unauthorized access to it, its theft, or the manipulation of information by third parties.
- To reiterate in writing to users their obligations regarding security and the consequences of non-compliance. Among these obligations, special emphasis will be placed on the obligation to inform the data protection officer of the Conselleria of any incident they become aware of that could affect the security of personal data or information in general, through the appropriate channels.

For these purposes, a communication was prepared addressed to the staff of the Conselleria do Mar, which is planned to be sent via email once the current Christmas holiday period is over, in order to capture the maximum possible attention from the intended recipients.

• To maintain within the staff training and awareness plan, the training and awareness actions for users carried out to date, which are mentioned in the following section of this document.

In any case, this Conselleria expresses its full cooperation in establishing any measures or actions that the Spanish Agency for Data Protection deems appropriate to implement.”

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And, furthermore, both the respondent and the Xunta "are fully aware of the need to respect the fundamental right to data protection and are conscious of the special sensitivity of the personal data processed by some of their services, particularly those related to the most vulnerable groups. For this reason, since the entry into force of the General Data Protection Regulation, they have been carrying out thorough work to adapt all their personal data processing to the current regulations.

Among these adaptation efforts, the following should be highlighted:

1. Review and analysis of each of the processing activities carried out, their purposes, and bases for processing, ...
2. Review and update of informative clauses for the interested parties (adaptation of the legitimizing bases for processing, especially regarding the applicability of consent) and those necessary to regulate the relationship between the data controller and the data processor or among joint controllers, as applicable.
3. Within the Risk Treatment Action Plan, the corresponding risk analyses and impact assessments on data protection have been carried out.
4. As part of the training and awareness-raising efforts, various training sessions on personal data protection have recently been conducted for the staff of the Conselleria, both general and specialized, ...

Additionally, through the Intranet of the Xunta de Galicia, users of the information system of this Conselleria have permanent access to, among other things, the following information:

- Regulations on personal data protection (general, regional, and the most relevant reports from the supervisory authorities – AEPD).
- Regulations and policies on information security and cybersecurity.
- Models and procedures for compliance with data protection regulations.

◦ Training and dissemination channel: offering courses and workshops on data protection and information security and associated documentation. Among these courses and workshops, training activities of different levels can be found: Introduction; Advanced; Higher Course in Data Protection; and Higher Course in Cybersecurity, among others.

Etc., etc.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

The Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on the CONSELLERÍA DEL MAR, with NIF S1511001H, for the violations of Articles 5.1.f) and 32.1 of the GDPR, classified under Articles 83.5.a) and 83.4.a) of the GDPR, a warning sanction for each of the aforementioned violations.

SECOND: TO NOTIFY this resolution to the CONSELLERÍA DEL MAR.

THIRD: TO COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of Article 77.5 of the LOPDGDD.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension terminated.

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Director of the Spanish Agency for Data Protection

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